The examination is being carried out on the **following application documents**

Description, Pages

1, 11-30	as published	
2-10	filed in electronic form on	11-09-2025

Claims, Numbers

1-15	filed in electronic form on	11-09-2025

Drawings, Sheets

1/3-3/3	as published

The following documents have been cited in the international search report; the numbering will be adhered to in the rest of the procedure.

D1 DE 196 11 983 C1 (ZEISS CARL JENA GMBH [DE]) 31 July 1997 (1997-07-31)

D2 US 2011/067255 A1 (KUMMETZ JENS [DE] ET AL) 24 March 2011 (2011-03-24)

D3 EP 1 659 373 A1 (FAGOR S COOP [ES]) 24 May 2006 (2006-05-24)

D4 WO 2021/126261 A1 (VISHAY MEASUREMENTS GROUP INC [US]) 24 June 2021 (2021-06-24)

1 Amendments and arguments of the applicant

1.1 The examining division acknowledges the amendments filed with the letter dated 11.09.2025 and agrees with the applicant's assessment of novelty and inventive step with regard to D1-D4. The subject matter of claim 1 is considered to be novel (Art. 54 EPC) and inventive (Art. 56 EPC).

1.2 However, the following objections remain.

2 Clarity

2.1 Claim 1

2.1.1 Claim defines in lines 7-8 a *second thermal displacement relief layer.* However, the location of said *second thermal displacement relief layer* is not defined. In fact, it is not mentioned any more in claim 1. As its location is not defined, its technical function is not clear (Art. 84 EPC) and the scope of the claimed scale arrangement is ambiguous and therefore not clear (Art. 84 EPC).

2.1.2 In figures 2 and 3, the *second thermal displacement relief layer (208, 308)* is located below the intermediate member (206, 306). The *first thermal displacement relief layer* is located above the intermediate member.

2.1.3 This has to be clarified in claim 1 in order to establish a clear scope of protection in the sense of Art. 84 EPC.

2.2 Claim 5

Merely reference signs may be put in parenthesis (R. 43(7) EPC). Hence, the expression *"("FeNi")"* has to be reformulated as *"i.e. FeNi".*

2.3 Claim 9

Claim 9 defines as *"claimed in 8".* Presumably *"as claimed in claim 8"* is meant.

2.4 Claims 13-15

2.4.1 Claims 13 corresponds to originally filed claims 17-18 and claim 14 corresponds to originally filed claim 19, which were identified in the international preliminary report on patentability, i.e. IPRP, dated 24.02.2025 under point 1.4.5 to belong to a fourth invention.

2.4.2 Claim 15 corresponds to originally filed claim 20, which was identified in said IPRP under point 1.4.3 to belong to a second invention.

2.4.3 The subject matter of claims 13-15 is incompatible with the scale arrangement defined in claim 1, because the subject matter of claim 13-15 relies on the fact that there is no *second thermal displacement relief layer* between the *intermediate layer* and the *substrate.* This, however, is at the core of the present invention.

2.4.4 In addition, claim 14 defines that *"there is no adhesive and/or thermal displacement relief layer between said intermediate member and the substrate",* whereas claim 12, on which claim 14 depends, defines that the *"thermal displacement relief layer adheres an intermediate member of the thermal displacement relief structure to the substrate"*. This is contradictory and therefore not clear (Art. 84 EPC).

2.4.5 In order to avoid the above mentioned clarity objections, it is proposed to delete claims 13-15. A divisional application according to Rule 36 EPC may be filed in their regard.

2.4.6 The description has to be adapted accordingly.

2.4.7 Figures 4 and 5 relate to the subject matter of claims 13-15 and, therefore, have to be identified as not belonging to the claimed invention.

3 Further procedure

3.1 The applicant is kindly asked to file new application documents, which overcome the above mentioned objections. The description has to be adapted to the amended claims.

3.2 And accordingly amended claim set of application documents is considered to fulfil the requirements of the EPC in the light of the prior art currently at hand.